IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No219

CP(CAA)/51(AHM)2022
in
CA(CAA)/14(AHM)2022

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Silicate Minerals (I) Pvt Ltd **.....Applicant**
20 Microns Nano Mionerals Ltd

.....Respondent

Order delivered on ..24/04/2023

Coram:

Deep Chandra Joshi, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant	: Mr. Dhinal Shah, Adv.
For the Income Tax Department	: Ms. Pankti Shah, Adv. for Ms. Maithili Mehta, Adv.
For the RD	: Mr. Shiv Pal Singh, Assistant Director (NWR)

ORDER

Learned Counsel for the Income Tax Department states that there is no outstanding dues in the Transferor Company and there is demand of Rs. 49.74 Lakhs in the Transferee Company. Learned Counsel Mr. Dhinal Shah appears for the petitioner companies states that the Transferee Company will survive and undertakes to pay the outstanding demand as per law. Subject to the statement, the Counsel for the Income Tax Department states that she has no objection to the approval of the scheme.

Mr. Shiv Pal Singh Assistant Director for the Regional Director (RD) office states that in view of para 2 of affidavit dated 10.02.2023 from the petitioner companies undertaking to pay fees for enhancement of authorized share capital, they have no objection if the scheme is approved.

None appears for the Official Liquidator (OL). However, the report of OL dated 21.07.2022 is filed on 22.08.2022, and according to the Learned Counsel for the petitioner companies no objection is raised by the OL.

Heard. Reserved for order.

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AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

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DEEP CHANDRA JOSHI
MEMBER (JUDICIAL)

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